

THE DRUGS AND COSMETICS ACT, 1940
(23 OF 1940)¹

[10th April, 1940.]

An Act to regulate the import, manufacture, distribution and sale of drugs² [and cosmetics];

WHEREAS it is expedient to regulate the³ [import, manufacture, distribution and sale] of drugs² [and cosmetics];

AND WHEREAS the Legislature of all the Provinces have passed resolutions in terms of section 103 of the Government of India Act, 1935 (26 Geo. 5, c.2), in relation to such of the above-mentioned matters and matters ancillary thereto as are enumerated in List II of the Seventh Schedule to the said Act;

It is hereby enacted as follows:-

CHAPTER I
INTRODUCTORY

1. Short title, extent and commencement.— (1) This Act may be called the Drugs² [and Cosmetics] Act, 1940.

(2) It extends to the whole of India⁴ [* * *].

(3) It shall come into force at once; but Chapter III shall take effect only from such date⁵ as the Central Government may, by notification in the Official Gazette, appoint in this behalf, and Chapter IV shall take effect in a particular State only from such date⁵ as the State Government may, by like notification, appoint in this behalf:

⁶ [Provided that in relation to the State of Jammu and Kashmir, Chapter III shall take effect only from such date¹⁰ after the commencement of the Drugs and Cosmetics (Amendment) Act, 1972 (19 of 1972), as the Central Government may, by notification in the Official Gazette, appoint in this behalf.]

2. Application of other laws not barred.- The provisions of this Act shall be in addition to and not in derogation of, the Dangerous Drugs Act, 1930 (2 of 1930), and any other law for the time being in force.

3. Definitions.—In this Act, unless there is anything repugnant in the subject or context,

⁷ [(a) “⁸[Ayurvedic, Siddha or Unani] drug” includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of⁸ [disease or disorder in human beings or animals, and manufactured] exclusively in accordance with the formulae described in, the authoritative books of⁹ [Ayurvedic, Siddha and Unani Tibb systems of medicine], specified in the First Schedule;]

⁹ [(aa) “the Board” means—

(i) in relation to⁹ [Ayurvedic, Siddha or Unani] drug, the⁹ [Ayurvedic, Siddha and Unani Drugs Technical Advisory Board] constituted under section 33C; and

(ii) in relation to any other drug or cosmetic, the Drugs Technical Advisory Board constituted under section 5;]

1. For Statement of Object and Reasons, see Gazette of India, 1940, Pt. V, p. 34; for the Report of the Select Committee, see *ibid.*, p. 143.

The Act has been applied to all the partially excluded areas in the State of Orissa, see Orissa Government Notification No. 3358-LSG., dated the 25th August, 1941.

2. Ins. by Act 21 of 1962, s. 2 (w.e.f. 27-7-1964).

3. Subs. by the A.O. 1950, for certain words.

4. The words “except the State of Jammu and Kashmir” omitted by Act 19 of 1972, s. 2. (w.e.f. 31-5-1972).

5. 1st April, 1947; see Notifn. No. F. 28 (10) (3) 45-H (1), dated the 2nd September 1946, Gazette of India, 1946, Pt. I, p. 1349.

Chapter IV came into force in the States of Delhi, Ajmer and Coorg on the 1st April, 1947, see *ibid.*, Chapters III and IV came into force in the States of Himachal Pradesh, Bilaspur, Kutch, Bhopal, Tripura, Vindhya Pradesh and Manipur on the 1st April, 1953, vide Notification No. S.R.O. 663, dated the 30th March, 1953, Gazette of India, Pt. II, Sec. 3, p. 451.

Chapter IV came into force in the Union territory of Dadra and Nagar Haveli w.e.f. 1st August, 1968, see Notification No. ADM/Law/117(74), dated the 20th July, 1968, Gazette of India, Pt. III, Sec. 3, p. 128. The Act is extended to Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Sch. I; to Pondicherry by Reg. 7 of 1963, s. 3 and Sch. I; to Goa, Daman and Diu by Reg. 11 of 1963, s. 3 and Sch. and to Laccadive, Minicoy and Amindivi Islands by Reg. 8 of 1965, s. 3 and Sch.

6. Added by Act 19 of 1972, s. 2.

7. Ins. by Act 13 of 1964, s. 2 (w.e.f. 15-9-1964).

8. Subs. by Act 68 of 1982, s. 2, for certain words (w.e.f. 1-2-1983).

9. Clause. (a) was relettered as cl. (aa) by Act 13 of 1964 s. 2, (w.e.f. 15-9-1964).

10. 24th August, 1974, vide notifi no. S.O. 2185, dt. 9th August, 1974.

^{1 2} [(aaa)] “cosmetic” means any article intended to be rubbed, poured, sprinkled or sprayed on, or introduced into, or otherwise applied to, the human body or any part thereof for cleansing, beautifying, promoting attractiveness, or altering the appearance, and includes any article intended for use as a component of cosmetic [³ * * *];]

⁴ [(b) “drug” includes—

⁵ [(i) all medicines for internal or external use of human beings or animals and all substances intended to be used for or in the diagnosis, treatment, mitigation or prevention of any disease or disorder in human beings or animals, including preparations applied on human body for the purpose of repelling insects like mosquitoes;]

(ii) such substances (other than food) intended to affect the structure or any function of the human body or intended to be used for the destruction of [⁶ vermin] or insects which cause disease in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette;]

⁷ [(iii) all substances intended for use as components of a drug including empty gelatin capsules; and (iv) such devices* intended for internal or external use in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette, after consultation with the Board;]

⁸ [(c) “Government Analyst” means—

⁹ (i) in relation to [Ayurvedic, Siddha or Unani] drug, a Government Analyst appointed by the Central Government or a State Government under section 33F; and

(ii) in relation to any other drug or cosmetic, a Government Analyst appointed by the Central Government or a State Government under section 20;]

¹⁰ [⁹ * * * * *]

¹¹ [(e) “Inspector” means—

⁹ (i) in relation to [Ayurvedic, Siddha or Unani] drug, an Inspector appointed by the Central Government or a State Government under section 33G; and

(ii) in relation to any other drug or cosmetic, an Inspector appointed by the Central Government or a State Government under section 21;]

^{12 13} [(f)] “manufacture” in relation to any drug [¹⁴ or cosmetic] includes any process or part of a process for making, altering, ornamenting, finishing, packing, labelling, breaking up or otherwise treating or adopting any drug [¹⁴ or cosmetic] with a view to its [¹⁵ sale or distribution] but does not include the compounding or dispensing [¹⁶ of any drug, or the packing of any drug or cosmetic,] in the ordinary course of retail business; and “to manufacture” shall be construed accordingly;]

¹⁷ [(g)] “to import”, with its grammatical variations and cognate expressions means to bring into [¹⁸ India];

1. Ins. by Act 21 of 1962, s. 4 (w.e.f. 27-7-1964).

2. Clause. (aa) relettered by Act 13 of 1964, s. 2 (w.e.f. 15-9-1964).

3. omitted by Act 68 of 1982, s.3, certain words.

4. Subs. by Act 11 of 1955, s. 2, for cl. (b).

5. Subs. by Act 68 of 1982, s. 3 (w.e.f. 1-2-1983).

6. Subs. by Act 13 of 1964, s. 2, for “vermins” (w.e.f. 15-9-1964).

7. Ins. by Act 68 of 1982, s.3 (w.e.f. 1-2-1983).

The Central Government has specified (vide S.O. 1468 (E), dated 6-10-2005) the following devices intended for external or internal use in human beings or drugs with immediate effect, namely:-

(i) Cardiac Stents (ii) Drug Eluting Stents (iii) Catheters (iv) Intra Ocular Lenses (v) I.V. Cannulac (vi) Bone Cements
(vii) Heart Valves (viii) Scalp Vein Set (ix) Orthopaedic Implants (x) Internal Prosthetic Replacements

8. Subs. by Act 13 of 1964, s. 2, for cl. (c) (w.e.f.15-9-1964).

9. Subs. by Act 68 of 1982 s.2, for “Ayurvedic (including sidda) or Unani” (w.e.f. 1-2-1983).

10. Cl. (d) omitted by Act 19 of 1972, s. 3.

15. Subs. by Act 68 of 1982, s.3, for “sale and distribution”(w.e.f. 1-2-1983).

11. Subs. by Act 13 of 1964, s. 2, for cl. (e) (w.e.f. 15-9-1964).

16. Subs. by Act 21 of 1962 s. 4, for “or the packing of any drug”.

12. Ins. by Act 11 of 1955, s. 2.

17. Cls.(c), (d) and (e) relettered as cls. (g), (h) and (i) respectively by Act 35 of 1960, s. 2 (w.e.f. 16-3-1961).

13. Clause. (bbb) relettered as cl. (f) by Act 35 of 1960, s. 2 (w.e.f. 16-3-1961).

14. Ins. by Act 21 of 1962, s. 4 (w.e.f. 27-7-1964).

18. Subs. by Act 3 of 1951, s. 3 and Sch., for “the States”.

^{1 2} [(h)] “patent or proprietary medicine” means,—

(i) in relation to Ayurvedic, Siddha or Unani Tibb systems of medicine all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurveda, Siddha or Unani Tibb systems of medicine specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a);

(ii) in relation to any other systems of medicine, a drug which is a remedy or prescription presented in a form ready for internal or external administration of human beings or animals and which is not included in the edition of the Indian Pharmacopoeia for the time being or any other Pharmacopoeia authorised in this behalf by the Central Government after consultation with the Drugs Technical Advisory Board constituted under section 5;]

^{3 2} [(i)] “prescribed” means prescribed by rules made under this Act.]

⁴ [* * * * *]

⁵ [3A. Construction of references to any law not in force or any functionary not in existence in the State of Jammu and Kashmir.—Any reference in this Act to any law which is not in force, or any functionary not in existence, in the State of Jammu and Kashmir, shall, in relation to that State, be construed as a reference to the corresponding law in force, or to the corresponding functionary in existence, in that State.]

4. Presumption as to poisonous substances.—Any substance specified as poisonous by rule made under Chapter III or Chapter IV⁶ [or Chapter IVA] shall be deemed to be a poisonous substance for the purposes of Chapter III or Chapter IV⁶ [or Chapter IVA], as the case may be.

CHAPTER II

THE DRUGS TECHNICAL ADVISORY BOARD, THE CENTRAL DRUGS LABOURATORY AND THE DRUGS CONSULTATIVE COMMITTEE

5. The Drugs Technical Advisory Board.—(1) The Central Government shall, as soon as may be, constitute a Board (to be called the Drugs Technical Advisory Board) to advise the Central Government and the State Governments on technical matters arising out of the administration of this Act and to carry out the other functions assigned to it by this Act.

⁷ [(2) The Board shall consist of the following members, namely:—

- (i) the Director General of Health Services, *ex officio*, who shall be Chairman; (ii) the Drugs Controller, India, *ex officio*;
- (iii) the Director of the Central Drugs Laboratory, Calcutta, *ex officio*;
- (iv) the Director of the Central Research Institute, Kasauli, *ex officio*;
- (v) the Director of Indian Veterinary Research Institute, Izatnagar, *ex officio*;
- (vi) the President of Medical Council of India, *ex officio*;
- (vii) the President of the Pharmacy Council of India, *ex officio*;
- (viii) the Director of Central Drug Research Institute, Lucknow, *ex officio*;
- (ix) two persons to be nominated by the Central Government from among persons who are in charge of drugs control in the States;

1. Subs. by Act 68 of 1982, s. 3, for cl. (h) (w.e.f. 1-2-1983).

2. Cls. (c), (d) and (e) relettered as cls. (g), (h) and (i) respectively by Act 35 of 1960, s. 2 (w.e.f. 16-3-1961).

3. Subs. by Act 11 of 1955, s. 2, for cl. (e).

4. Clause. (f) ins. by the A.O. 1950 and omitted by Act 3 of 1951, s. 3 and Sch.

5. Ins. by Act 19 of 1972, s. 4 (w.e.f. 31-5-1972).

6. Ins. by Act 13 of 1964, s. 3 (w.e.f. 15-9-1964).

7. Subs. by Act 13 of 1964, s. 4, for sub-section (2) (w.e.f. 15-9-1964).